

AUTHORITY
PERSONAL DATA
Our reference
z2022-02178

The draft contains multiple articles establishing grounds for the processing of personal data.¹ The draft also includes relevant grounds for lower regulations concerning data processing.²

For determining heat consumption, heat meters, heat cost allocators³, or a consumption-independent cost allocation system is used. The draft provides for the possibility that a consumer may request not to have the measuring device read remotely.⁴ The explanatory note refers to the advice on smart meters from the Authority.

Advice

The draft contains a basis for a general administrative regulation, in which rules can be established regarding, among other things, the frequency with which measurement data from remotely readable heat meters and heat cost allocators are collected.⁵ These consumption data are personal data if they relate to the consumption of a natural person. This will certainly be the case for the consumption data of a small consumer. The frequency to be chosen is not expected to change often and is an important element in the degree of intrusion that the regulation entails.⁶ A higher frequency allows for a more accurate picture of the household's life to be constructed. It is conceivable that it can be inferred from this whether and during which periods the house is occupied or whether the residents are on vacation. After all, the intrusion on the protection of personal data is greater as the frequency increases. The explanatory note does not yet provide an indication of the intended frequency.

The Authority advises to include in the legislative text with what frequency the consumption data of small consumers can be read at most from a remotely readable heat meter or heat cost allocator and to substantiate this frequency in the explanatory note.

Publication

The Authority intends to make this advice public on the website www.autoriteitpersoonsgegevens.nl as soon as the text of the (amended) draft is made public. The Authority would like to know the expected time of publication as soon as this is known.

¹ Among others, Articles 8.1 and 8.2, 2.29, seventh paragraph, Article 4.1 and further as far as it concerns personal data related to the exemption, and Article 14.7 (reporting obligation for existing landlords).

² Article 2.25, third and fourth paragraphs, (on the data about and originating from measuring devices) and Article 8.2, third paragraph, regarding the retention period of personal data.

Heat cost allocators are devices that are connected to the radiators in a home or building and register consumption and can be read remotely. Heat cost allocators can be used to measure consumption in apartment buildings and complexes in cases where a heat meter is not cost-effective or technically feasible. (PIA p. 9)

Article 2.25, second paragraph. Unlike the Energy Act, this facility is not disabled, but that specific processing method is not lawful if the small consumer has requested it. Enforcement of this rests with the Authority and is not under the jurisdiction of the ACM by inclusion in Article 9.4.

i

2.25, third paragraph, introductory clause and under g, of the draft. That article also applies to small collective heat systems based on Article 3.6 and for supply by a landlord based on Article 4.6.

⁶ Guideline 2.19 of the Guidelines for Legislation states that the laws must contain at least the main elements of the regulation.

Date

July 12, 2022
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July 12, 2022

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Yours sincerely,

Chairman

3/3

Yours sincerely,

Authority Personal Data,

Aleid Wolfsen

Chairman